

SENATE No. 949

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide green and healthy public colleges and universities and address their deferred maintenance needs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/30/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>1/31/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/13/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>3/24/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>3/31/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>7/7/2025</i>

SENATE No. 949

By Mr. Oliveira, a petition (accompanied by bill, Senate, No. 949) of Jacob R. Oliveira, Vanna Howard, Michael D. Brady, James K. Hawkins and other members of the General Court for legislation to create a Green and Healthy Public College and University Building Planning Commission that will make recommendations for public higher education buildings relative to energy efficiency, spatial adequacy, life safety, accessibility, indoor environmental quality and public health. Higher Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide green and healthy public colleges and universities and address their deferred maintenance needs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 15A of the General Laws is hereby amended by inserting, after
2 section 47, the following section:-

3 Section 48. Green and Healthy Public College and University Building Planning
4 Commission

5 (a) There shall be a Green and Healthy Public College and University Building Planning
6 Commission, which shall consist of: the commissioner of higher education, who shall serve as
7 chair, or a designee; the commissioner of public health, who shall serve as vice chair, or a
8 designee; the secretary of energy and environmental affairs, who shall serve as vice chair, or a
9 designee; the speaker of the house of representatives, or a designee; the president of the senate,
10 or a designee; the minority leader of the house of representatives, or a designee; the minority

11 leader of the senate, or a designee; the chairs of the joint committee on ways and means, or their
12 designees; the chairs of the joint committee on higher education, or their designees; the president
13 of the university of Massachusetts, or a designee; the executive director of the Massachusetts
14 Association of Community Colleges, or a designee; the executive officer of the Massachusetts
15 State University Council of Presidents, or a designee; 4 representatives of the Massachusetts
16 Teachers Association, 1 of whom shall be employed by the university of Massachusetts, 1 of
17 whom shall be employed by a state university, and 1 of whom shall be employed by a
18 community college; a representative of the American Federation of Teachers, Massachusetts; a
19 representative of the American Institute of Architects-Massachusetts; a representative of the
20 Massachusetts State Building Trades Council; a representative of the Massachusetts Coalition for
21 Occupational Safety and Health; and a representative of the Massachusetts Department of Higher
22 Education's Student Advisory Council.

23 (b) The commission shall assess and make recommendations for public higher education
24 buildings relative to energy efficiency, spatial adequacy, life safety, accessibility, indoor
25 environmental quality and public health. The commission shall be established not less than every
26 10 years to monitor the implementation of its recommendations, and to conduct a new
27 assessment if determined to be necessary by the commission.

28 (c) The commission shall determine the means of conducting its work, which shall
29 include, but not be limited to:

30 (1) assessing the extent to which public higher education buildings in the commonwealth
31 provide students a healthy environment that is conducive to learning while efficiently using
32 energy and resources and limiting exposure to toxic building materials, referred to in this section

as “green and healthy public higher education buildings”. Factors to be considered shall include, but not be limited to: (i) protection against infectious disease; (ii) sufficient ventilation and air circulation, including adequate outdoor air exchange, filtration and circulation; (iii) healthy indoor air quality, including limits on pollutants, exposure to toxic substances, chemical emissions and vapor intrusion; (iv) adequate availability of clean and safe water; (v) appropriate thermal comfort, humidity and temperature controls; (vi) protections against pests with effective use of integrated pest management; (vii) limits on pollutants, dust, mold and allergens; (viii) appropriate artificial lighting and plentiful natural light; (ix) proper acoustic and noise control; (x) proper maintenance of mechanical systems; (xi) design that promotes physical activity and meets accessibility standards; (xii) opportunities to increase energy efficiency and efficient use of resources including low-flow fixtures; (xiii) opportunities to shift to fossil-free fuels; (xiv) proper access to greenspace; and (xv) opportunities for architectural design to enhance occupant safety. The assessment may rely on existing data or be objectively measured. The assessment shall include a public searchable online dashboard with the findings for all public higher education buildings in the commonwealth; and

(2) developing standards for green and healthy public higher education buildings.

(d) Members of the commission shall not receive compensation for their services but may receive reimbursement for the reasonable expenses incurred in carrying out their responsibilities as members of the commission. The commissioner of higher education shall furnish reasonable staff and other support for the work of the commission.

SECTION 2. Chapter 29 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 2A(A)(A)(A) the following 2 sections:-

Section 2BBBBBB. Public College and University Capital Debt Relief Fund

(a) There shall be a separate fund, to be administered by the board of higher education, which shall be known as the Public College and University Capital Debt Relief Fund. The fund shall be credited with: (i) appropriations, bond proceeds or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to gifts, grants and donations; and (iii) any interest earned on such funds. Amounts credited to the fund shall be used, without further appropriation, to provide financial relief for debt service associated with capital construction projects at commonwealth institutions of public higher education, as defined in section 5 of chapter 15A; provided, however, that, students shall not be charged fees for that portion of the debt service paid out of the fund. The board of higher education, in consultation with the trustees of the university of Massachusetts, shall determine the amounts to be allocated to each public higher education institution to cover debt service obligations; and provided further, that funds allocated from this reserve shall only be used to cover said debt service obligations and that public higher education institutions shall invest funds made available by relieving debt service obligations for hiring full-time faculty and staff, providing pay increases or other benefits for adjunct faculty, and in other student success programs including, but not limited to, additional supports for low-income students and students of color, using methods that improve the college experience and graduation rates.

Section 2CCCCCC. Green and Healthy Public College and University Building Fund

(a) There shall be a separate fund, to be administered by the board of higher education, which shall be known as the Green and Healthy Public College and University Building Fund.

The fund shall be credited with: (i) appropriations, bond proceeds or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to gifts, grants and donations; and (iii) any interest earned on such funds. Amounts credited to the fund shall be used, without further appropriation, to fund and implement the recommendations of the Green and Healthy Public College and University Building Planning Commission, established in section 46 of chapter 15A, for the renovation and rehabilitation of existing buildings and new building construction to meet the recommended green and healthy public higher education buildings standards.

SECTION 3. Notwithstanding any general or special law, rule or regulation to the contrary, after January 1, 2027, the costs associated with the construction of an academic, administrative or auxiliary building at a commonwealth institution of public higher education, as defined in section 5 of chapter 15A of the General Laws, shall be paid in full by the commonwealth from state funds or eligible federal funds and shall not be paid for with any public higher education institutional funds or financed through public building authorities or private entities; provided, that the costs associated with deferred maintenance and the assessment, upgrade or repair of any existing academic, administrative or auxiliary building at an institution of public higher education that is under the control and supervision of the department of capital asset management and maintenance shall be paid in full by the commonwealth.

SECTION 4. The Green and Healthy Public College and University Building Planning Commission, as established in section 48 of chapter 15A of the General Laws, shall create and recommend a plan for all existing and new public higher education buildings to equitably meet the standards for green and healthy public higher education buildings developed pursuant to paragraph (c) of section 48 of said chapter 15A, by 2037. The commission shall issue

100 recommendations, including an analysis that summarizes the findings of its assessment of public
101 higher education buildings in the commonwealth, for implementing green and healthy public
102 higher education buildings standards for cost-effective renovation and rehabilitation of existing
103 buildings and for new building construction, and a plan for implementing these standards for all
104 public higher education buildings, by 2037. The recommendations shall prioritize addressing
105 buildings with the greatest needs first. The recommendations shall consider the unique
106 environmental conditions of buildings located in urban, industrial, and other areas facing
107 particular site challenges and shall consider the need to address historic patterns of injustice and
108 inequity in public higher education. The recommendations shall estimate the cost of bringing all
109 buildings into compliance with the standards by 2037, including the ongoing cost of maintenance
110 and repair, and recommend a plan to fund these costs, and shall also compare those costs with
111 long-term savings in health and medical costs, energy costs, maintenance, life cycle assessment
112 and other savings, and the growth in economic activity of bringing buildings to the standards,
113 including increased jobs and job training. The first plan of the commission shall be published and
114 submitted to the joint committee on ways and means and the joint committee on higher education
115 not later than December 31, 2028. Prior to completing its assessment and issuing its
116 recommendations, the commission shall conduct public hearings at every commonwealth
117 institution of public higher education and shall consult with employee organizations, as defined
118 in chapter 150E, representing employees at each institution of public higher education.